Showing contexts for: **title dispute** in Sri K. Pavan Raj vs The Municipal Corporation Of Hyderabad ... on 3 December, 2007

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4. On 13-10-2006 the petitioner made an application for permission to construct a building on the plot in question. On 28/29-6-2007 the said application was rejected. Feeling aggrieved by the said rejection, petitioner filed this Writ Petition.

5. The Divisional Engineer (North), South Central Railway, Hyderabad Division at Secunderabad filed a counter-affidavit on behalf of respondents 3 and 4. It is averred, inter alia, that the plot admeasuring 660 Sq.yards, which was allegedly purchased by the father of the petitioner belongs, exclusively, to the Railways and that it is within the boundaries of the Railway land. The deponent to the counter denied existence of two rooms and any door number and also the claim of the petitioner that the left over land, after acquisition by the Railways, was converted into plots by the pattadars; and that in the Survey and Land Records, the land, which was assigned fresh Survey Numbers as S.Nos.23, 24 and 25, is shown as Railway land and in possession of the Railways. It is, however, admitted in the counter-affidavit that Second Appeal No.108 of 2001 filed by the petitioner's father was allowed on 5-8-2005, in which a finding was rendered that the petitioner's father was in physical possession of the land on the date of filing of the suit and that decree having been confined to perpetual injunction and in view of the observations made by this Court in the Second Appeal, proceedings under the Public Premises (Eviction of Unauthorized Occupants) Act, 1971 were initiated to evict the petitioner, who is an unauthorized occupant of the land and that the Writ Petition filed by the petitioner questioning initiation of the said proceedings is still pending. The deponent, while also justifying rejection of NOC by the Joint Collector, Hyderabad pleaded that in reply to letter dated 4/7-5-2007 sent by

the Chief City Planner, Greater Hyderabad Municipal Corporation, Town Planning Section, Hyderabad, requesting the Railways to send their objections for granting permission for construction of building on the **disputed** site, the Railways sent their reply on 17-5-2007 stating that they are strongly objecting to the grant of building permission as the land belongs to Railways and Writ Petition No.27566 of 2005 filed by the petitioner, questioning the notice issued by the Railways under the Provisions of the Public Premises (Eviction of Unauthorized Occupants) Act, 1971, is pending. It is, therefore, averred that in view of the **dispute** of **title** and the issue being sub-judice before this Court, respondents 1 and 2 are justified in rejecting the application of the petitioner for granting building permission.

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16. The scope and ambit of the power of the Commissioner of the Municipal Corporation under Section 428 and 429, in particular, to the extent of his power to examine the **title** of the applicant for building permit has fallen for consideration of this Court in Hyderabad Potteries Private Limited v. Collector, Hyderabad . In para 40 of the said judgment it is held thus:

> Of course, the Commissioner has to consider the objections, if any, raised for grant of permission. But, an objection raised by a member of the Committee itself would not be enough to reject the application for grant of permission. The Commissioner is required to make pragmatic assessment of the material available on record and decide the question of prima facie **title** and lawful possession of the applicants. The applications for grant of permission cannot be rejected solely on the basis of TSLR entries. After all, the decision to grant permission itself would not confer any **title** upon the applicant, nor it would take away the rights of the objector (s), whether the Government or any individual, for asserting their right, **title** and interest in the land in respect of which permission has been granted and **dispute** the **title** in any manner known to law. Similarly, the Commissioner is not en**titled** to decide any **disputed** questions of **title** or the ownership. All that the Commissioner required to do is to find out prima facie **title** and lawful possession of the applicant and obviously such consideration is confined to only for the purposes of granting permission and nothing more.

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20. Therefore, on this objection, respondents 1 and 2 are not justified in denying grant of building permission to the petitioner.

21. The other ground, which is substantial, as noted hereinabove, pertains to the objection raised by the South Central Railway under Bye-law No.6.2.

22. From a reading of the said Bye-law, which is reproduced hereinabove, it is clear that it does not empower the 1st respondent-Corporation to entertain an objection relating to a **title dispute**. It only facilitates the adjacent property holder, viz., Public Works Department, Military authority or Government or other Statutory Body, to raise objection to the proposed construction obviously to ensure that the proposed building does not obstruct or hinder the activities of the said authorities/bodies. It is significant to notice the caveat contained in the said clause, viz., "no permission shall be refused on the basis of any objection which is not sustained by any provisions of these bye-laws or any other law applicable thereto".

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23. A careful reading of the provisions of the Act and the Bye-laws does not indicate that the Commissioner is empowered to entertain a **title dispute** and adjudicate the same before disposing of the application for grant of building permission. Indeed, both the provisions of Sections 428 and 429 and Clause (v) of Bye-law 4.2 envisage filing of copies of **title** deeds and there is no provision under which the Commissioner can reject grant of building permit on the ground of **title dispute**. As held in HYDERABAD POTTERIES (1 supra), if any objection regarding **title** is received, the Commissioner is required to be prima facie satisfied about the applicant's **title** to the property and his lawful possession of the same and he cannot decide **title dispute** because that is neither one of the duties assigned to him nor he is provided with such an adjudicatory mechanism. A person setting up a rival claim of **title**, is free to approach the court of competent jurisdiction and seek appropriate relief in that regard. If the applications for building permissions are rejected merely on the ground of third parties raising **disputes** of **title**, that may result in serious

hardship to the owners of the properties where frivolous, speculative and vexatious claims may be made by third parties by setting up **title**. Therefore, wherever the Commissioner is, prima facie, satisfied about the legal **title** of the applicant and his lawful possession, he is bound to consider the application for building permission on merits, leaving the objector free to approach an appropriate court of law.